

Court No. - 21

Case :- WRIT - C No. - 7239 of 2024

Petitioner :- Shakuntala Devi And Another

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Deena Nath,Deepak Kumar,Sunita
Dhusia

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Shri N.K. Tiwari, learned counsel for respondent-Electricity Department seeks time to obtain instructions so as to demonstrate how the procedure prescribed under the Electricity Supply Code, 2005 was followed in the instant case.

2. List as fresh on 21.03.2024.

Order Date :- 6.3.2024

Sazia

(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. From the instructions produced by Shri N.K. Tiwari, learned counsel for the respondent, Electricity Department, it is clear that notice of provisional assessment was issued on 23.01.2021 fixing 04.02.2021 even before expiry of fifteen days time stipulated under Clause 6.8 for filing of objection.
2. Let the instant matter be put up as fresh on 1 April 2024 along with record of Writ-C No. 3458 of 2024.
3. Shri N.K. Tiwari, counsel for the Electricity Department will inform the Managing Director of DISCOM about the instant order so that he may be in a position to respond to the issue flagged in the instant order.

Order Date :- 21.3.2024

Mukesh Kr.

(Kshitij Shailendra,J.)

(Manoj Kumar Gupta,J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. None present for the parties.

2. Put up as fresh on 18.04.2024.

Order Date :- 1.4.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The petitioner has called in question a demand notice dated 20 January 2021 and recovery certificate dated 11.07.2022 issued by respondent No. 3 for recovery of electricity dues in a case of theft of electricity.

2. Shri Narendra Kumar Tiwari, learned counsel appearing on behalf of the DISCOM states that the impugned recovery has been withdrawn and a communication sent in this regard to A.D.M. (Finance & Revenue), Prayagraj dated 28.03.2024 has been placed before us.

3. In view of above, the cause of action does not survive.

4. The petition stands disposed of.

Order Date :- 18.4.2024

Mukesh Kr.

(Kshitij Shailendra,J.)

(Manoj Kumar Gupta,J.)